

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: HON. BENJAMIN T REYES II
HEARING DATE: 01/07/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-02445
CASE NAME: DARSHAN SINGH VS. RUDOLPH SANDOVAL
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference ("CMC") trails the hearing for Line No. 5. Counsel are ordered to appear via Zoom or in person for the CMC following the hearing. If the tentative ruling for Line No. 5 is not contested, then the CMC will be continued to March 18, 2026 at 9:00 a.m. in Dept. 16.

2. 9:00 AM CASE NUMBER: C25-01679
CASE NAME: CARLOS ALFARO AREVALO VS. HYUNDAI MOTOR AMERICA
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (“CMC”) trails the hearing for Line No. 12. Counsel are ordered to appear via Zoom or in person for the CMC at 9:00 a.m.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-01583
CASE NAME: S A VS. EARTH SEEDS LLC
HEARING ON DEMURRER TO: TO: 1ST AMENDED COMPLAINT
FILED BY: WONDERSCHOOL, INC.

TENTATIVE RULING:

Off calendar. These parties were ordered to proceed with arbitration, see Order filed on 12/31/2025.

4. 9:00 AM CASE NUMBER: C23-01583
CASE NAME: S A VS. EARTH SEEDS LLC
***HEARING ON MOTION IN RE: TO STRIKE RE: FIRST AMENDED COMPLAINT**
FILED BY: WONDERSCHOOL, INC.

TENTATIVE RULING:

Off calendar. These parties were ordered to proceed with arbitration, see Order filed on 12/31/2025.

5. 9:00 AM CASE NUMBER: C23-02445
CASE NAME: DARSHAN SINGH VS. RUDOLPH SANDOVAL
***HEARING ON MOTION IN RE: SANCTIONS FOR DEFENDANTS' REFUSAL TO COMPLY WITH COURT ORDERS**
FILED BY: SINGH, DARSHAN

TENTATIVE RULING:

Summary

Plaintiff Darshan Singh’s Motion for Terminating Sanctions and Monetary Sanctions against Defendants Rudolph Sandoval and Anthony Roston is **granted** as set forth herein. Sanctions are **granted**.

Background

In this breach of construction contract case, Plaintiff Darshan Singh (“Plaintiff” or “Singh”) retained Defendants Rudolph Sandoval (“Sandoval”) and Anthony Roston (“Roston”), to construct a pool house and deck at his home in Danville, California. Plaintiff claims that Defendants worked together in violation of the law to allow Roston, whose contractor’s license was administratively revoked by the California Contractors State License Board (“CSLB”), to work under Sandoval’s contractor’s license. There is a dispute about whether the work was completed and Plaintiff brings this suit for cost of completion and other damages against Defendants. A default was entered against Roston on December 4, 2024.

On September 5, 2025, Plaintiff filed this Motion for Terminating Sanctions and Monetary Sanctions in the amount of \$7,200 against Defendants and their attorney, Andrew Shalaby, Esq. The Motion was

supported by a Notice, Memorandum of Points and Authorities, Request for Judicial Notice, and Declaration of Counsel Kerri M. Melucci.

Plaintiff argues that Defendants have not complied with the Court's prior orders to produce discovery and has filed objections that are not only inapplicable, but also violate this Court's orders. Specifically, the Court ordered Defendants to prepare answers to discovery on March 7, 2025 without further objections. After the deadline to respond, Defendants served a written objection "to all discovery," despite the Court's clear orders to the contrary and brought a motion to set aside the March 7, 2025 Court Order. The Court denied Defendants' motion, and again ordered Defendants to respond to discovery, without objections, no later than July 31, 2025. Defendants now violate that Court Order. Defendants now serve *another* objection to discovery based upon the Fifth Amendment privilege against self-incrimination, which does not apply to civil cases.

Defendants filed an opposition on December 8, 2025 asserting that "have not refused to comply" with the Court's orders and further seek a Motion for Protective Order to prevent disclosure of any information related to the Contractor's State License Board investigation related to case number NA 2022-15282, which Defendants claim Plaintiff had initiated against them. Defendants assert that objections were necessitated to preserve their 5th Amendment Right against self-incrimination. Defendant also assert that Plaintiff violated his duty of candor to the Court by failing to disclose this "criminal complaint" that Plaintiff initiated against Defendants. Nowhere in Defendants' opposition do they state that they have attempted to timely complied with this Court's discovery orders. Plaintiff filed a reply brief contesting the opposition arguments on December 29, 2025, which the Court has considered. The Court has also reviewed the additional declaration filed by Counsel Melucci to the extent that they are relevant to these proceedings.

Analyses

Request for Judicial Notice

Plaintiff's Request for Judicial Notice pursuant to Evid. Code §452(d) of the Court's records, marked as Exhibits H, I and J are granted, without opposition.

Violation of Discovery Orders

If a party fails to obey an order compelling answers to interrogatories or requests for production, the Court may make orders that are just, including the imposition of an issue, evidence, or terminating sanctions under the Civil Discovery Act. (Code Civ. Proc. ("CCP") §§ 2030.290, subd. (c) and 2031.300, subd. (c).) Pursuant to CCP § 2023.030 the court "may impose terminating sanctions by one of the following orders: (1) [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process; (2) [a]n order staying further proceedings by that party until an order for discovery is obeyed; (3) [a]n order dismissing the action, or any part of the action, of that party; or (4) [a]n order rendering a judgment by default against that party." (Code Civ. Proc., § 2030.030, subd. (d)(1)-(4).)

The Court applies discovery sanctions to correct prejudice, not to punish misbehavior. (See *McGinty v. Superior Court* (1994) 26 Cal.App.4th 204, 210.) "Discovery sanctions serve to remedy the harm caused to the party suffering the discovery misconduct. [Citation.] Because discovery sanctions are

not designed to punish, "sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." [Citation.]" (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 74.) For this reason, "sanctions are generally imposed in an incremental approach[.]" (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 191-192 (Department of Forestry), disapproved of on other grounds in *Presbyterian Camp & Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493, 516, fn. 17.)

However, even under the Civil Discovery Act's incremental approach, the trial court may impose terminating sanctions as a first measure in extreme cases, or where the record shows lesser sanctions would be ineffective." (*Department of Forestry, supra*, 18 Cal.App.5th at p. 191-192.) "If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse . . . "[W]here a violation is willful, preceded by a history of abuse, and ... less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Atlas v. Davidyan (2025) 113 Cal.App.5th 1086, 1095 quoting *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701.)

Applied here, the Court finds that Defendants have not complied with the Court's clear orders to produce discovery responses without further objections, which were ordered on March 7, 2025 and June 16, 2025. Plaintiff propounded discovery requests that necessitated these on March 22, 2024-over seventeen (17) months prior to bringing this motion. Defendants have not provided responses, without objections, as ordered by the Court. Plaintiffs are without basic discovery that permits them to pursue litigation against the Defendants in this breach of contract case. The Court finds merit to Plaintiff's argument that Defense counsel continues to engage in a pattern of delay and unfounded objections.

The Court also finds that Defendant's Fifth Amendment objections are without merit. Defendants cannot properly employ the 5th Amendment privilege in a State administrative matter involving the CSLB. Indeed, the Court of Appeal in *West Coast Home Imp. Co. v. Contractors' State License Bd. of Dept. of Professional and Vocational Standards* (1945) 72 Cal.App.2d 287 held a contractor could not refuse to testify on Fifth Amendment grounds in a CSLB investigation when "a veritable forest of cases have rejected the contention that such administrative proceedings 'are to be governed by criminal law theories on matters of evidence.'" (Id., p. 301, citing to *Webster v. Board of Dental Examiners* (1941) 17 Cal.2d 534, 53 7.) The "purpose of a disciplinary proceeding" before the CSLB "is to determine the fitness of a licensed contractor to continue in that capacity. It is not intended for the punishment of the individual contractor, but for the protection of the contracting business as well as the public ... " (Id., p. 301.) A proceeding before the CSLB "is a special proceeding of a civil nature, and the rules applicable to criminal cases do not apply." (Id., p.302.) The Court finds that Defendant's late objection to discovery on 5th Amendment grounds is without substantial justification and subject to sanctions.

Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to

discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Cal. Code of Civ. Proc. § 2023.020 states that the Court “**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

One of the basic purposes for imposing sanctions is to compel disclosure of discoverable information. See, e.g., *Marriage of Economou* (1990) 224 Cal.App.3d 1466, 1475 (court’s discretion to impose sanctions “must be exercised in a manner consistent with the basic purposes of such sanctions: to compel disclosure of discoverable information”); *Kaplan v Eldorado Ins. Co.* (1976) 55 Cal.App. 3d 587, 591 (discovery sanctions enable party “to obtain evidence in the control of his adversary in order to further the efficient, economical disposition of cases according to right and justice on the merits”).

In keeping with this purpose, the proposed sanction should be “suitable and necessary” to enable the requesting party to obtain the object of its discovery. *Caryl Richards, Inc. v Superior Court* (1961) 188 Cal.App.2d 300, 304. See *Juarez v Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 388. Whatever penalty is imposed should be “appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” *Deyo v Kilbourne* (1978) 84 Cal.App.3d 771, 793. Sanctions are awardable to parties, not their attorneys. *Poe v Diamond* (1987) 191 Cal.App.3d 1394, 1399. The trial court may impose sanctions for a pattern of discovery abuse. It is not limited to imposing sanctions for each violation of the rules governing depositions or other discovery methods.

Another basic purpose of sanctions is to curb misuse of the discovery process, which can cause unnecessary delay and add greatly to the financial and human costs of litigation. See CCP §2023.010. The purpose of any discovery sanction is to force a recalcitrant party to comply with discovery orders and to mitigate the prejudice suffered by the propounding party when such orders are disregarded. *Flood v Simpson* (1975) 45 Cal.App.3d 644, 651; *Pacers, Inc. v Superior Court* (1984) 162 Cal.App.3d 686.

In cases decided before and after the enactment of the Civil Discovery Act of 1986, courts have repeatedly stated that the purpose of sanctions is not “to provide a weapon for punishment, forfeiture and the avoidance of a trial on the merits.” *Crummer v Beeler* (1960) 185 CA2d 851, 858; see *City of Los Angeles v PricewaterhouseCoopers, LLP, supra*, 17 Cal.5th 46, 63 (quoting *Crummer*). See also *Marriage of Economou, supra*, 224 Cal.App. 3d 1466, 1475 (“Discovery sanctions cannot be imposed to punish the offending party or to bestow an unwarranted ‘windfall’ on the adversary”).

In addition, “[a] discovery sanction may not place the party seeking discovery in a better position than it would have been in if the desired discovery had been provided and had been favorable.” *Marriage of Chakko* (2004) 115 CA4th 104, 109; *Miranda v 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913 (dismissal of uninsured motorist arbitration upheld; trial court not required to impose “lesser sanction” of staying arbitration until discovery answered).

Applied here, the Court finds that Defendants have made groundless objections and have demonstrated a pattern of purposeful and unjustified tactics designed to delay these proceedings. Such actions are without substantial justification and are not made in a good faith effort. Accordingly,

the actions of Defendants and Defense Counsel Shalaby amounts to sanctionable conduct.

After careful review of the papers submitted by Counsel, and after applying the foregoing statutory and decisional authority, the Court finds good cause to make the following ruling and orders.

Ruling

1. Plaintiff Darshan Singh's Motion for Terminating Sanctions and Monetary Sanctions against Defendants Rudolph Sandoval and Anthony Roston are **granted**.
2. Defendants are ordered to serve code-compliant and verified responses to all outstanding discovery no later than five (5) days after the date of service of this order without further objections. All responsive documents must also be produced no later than five (5) days after date of service of this order.
3. Plaintiff's request for sanctions is granted against both Defendants and Counsel Andrew Shalaby, jointly and severally, in the amount of \$7,200 pursuant to Cal. Code of Civ. Proc § 2023.030(a). Sanctions are to be paid within ten (10) days of service of this order.
4. The Court provides notice that Defendants' failure to provide code-compliant verified responses to all outstanding discovery as set forth in this order will result in the Court issuing terminating sanctions pursuant to Cal. Code of Civ. Proc § 2023.030(d)(4), in which the Court will enter an order rendering a judgment by default against both Defendants.
5. Pursuant to Cal. Code of Civ. Proc § 2023.030(d)(2), the Court stays Defendants' Motions for Protective Order, currently on calendar for March 11 and March 18, 2026 until this order for discovery is obeyed. Both Motions are off calendar.
6. Defendants are ordered to prepare and e-file a proposed order that conforms to this ruling no later than five (5) days after the hearing, attaching a copy of this ruling.

6. 9:00 AM CASE NUMBER: C23-03283
CASE NAME: CANDELARIO BARRAGAN VS. SPECIALIZED LOAN SERVICING, LLC
***HEARING ON MOTION IN RE: RECONSIDERATION**
FILED BY: BARRAGAN, CANDELARIO
TENTATIVE RULING:

Summary

Plaintiff Candelario Barragan's Motion for Reconsideration is **denied** as set forth herein.

Background

This case involves a dispute between Plaintiff and Defendants relating to the mortgage and Home Equity Line of Credit pertaining to real property located at 3239 Doyle Lane, Oakley, CA, which is owned by Plaintiff.

On April 11, 2025, Plaintiff Candelario Barragan ("Plaintiff") filed a First Amended Complaint alleging Nine Causes of Action: (1) Declaratory Relief, (2) Quiet Title, (3) Violation of Cal. Bus. And Professions Code § 17200, (4) Violation of the Rosenthal Fair Debt Collection Practices Act, (5) Negligence, (6) Wrongful Foreclosure, (7) Unfair Competition, (8) Breach of Contract, and (9) Set Aside Trustee's Sale.

On April 30, 2025, Defendants Specialized Loan Servicing, LLC, Shellpoint Property Management, LLC, First Key Master Funding and Mason Yanowitz (collectively, "Defendants") filed a Demurrer to Plaintiff

Candelario Barragan's First Amended Complaint. The Demurrer was calendared for hearing on September 3, 2025 at 9:00 a.m. The basis for the demurrer to each of the nine causes of action is a failure to state facts sufficient to constitute a cause of action against Defendants pursuant to Cal. Code of Civ. Proc. § 430.10(e). The Demurrer was supported by a Notice containing the hearing date of September 3, 2025, Memorandum of Points and Authorities, Declaration of Counsel Jonathin C. Cahill, and a Request for Judicial Notice. The proof of service form shows that Counsel for Plaintiff, Ruben F. Arizmendi, Esq., was served by electronic transmission on April 30, 2025.

Pursuant to the Declaration of Defendant's counsel, Jonathan Cahill telephonically met and conferred with Plaintiff's counsel on April 21, 2025 prior to filing this Demurrer. The requirement to "meet and confer" is met.

Plaintiff failed to file a timely opposition to Defendant's demurrer to the First Amended Complaint. The Court issued a tentative ruling on September 2, 2025 pursuant to court rules. The tentative ruling sustained the First Amended Complaint without Leave to Amend. Counsel for Plaintiff failed to file a timely contest to the tentative ruling and did not appear at the hearing on September 3, 2025. The Court entered a minute order adopting the Court's tentative ruling sustaining the demurrer without leave to amend, and dismissing this case.

Now, Plaintiff brings this Motion for Reconsideration pursuant to Cal. Code of Civ. Proc § 1008(a) and (b) claiming that there are new or different facts, circumstances, or law. Plaintiff claims to identify extenuating circumstances, as described in the Declaration of Counsel Ruben Arizmendi, and new law prohibiting foreclosure of "Zombie Loans," as detailed in a proposed, but unfiled, Second Amended Complaint. (The court docket reflects that Plaintiff attempted to file a Second Amended Complaint on August 20, 2025. It was rejected with the notation that "You need leave of court in order to file a second amended complaint. There is a hearing set for 9/3/25 regarding the demurrer to the first amended complaint.) Defendants' counsel claim that Plaintiff's counsel did meet and confer with him about filing a second amended complaint.

Plaintiff claims that these "developments warrant reconsideration of the Courts prior ruling to ensure a just and equitable outcome." The Motion was filed on September 11, 2025 and was amended on September 29, 2025. Plaintiff's counsel did not explain why he failed to file a timely opposition to Defendants' demurrer, failed to contest the Court's tentative ruling and failed to appear at the hearing.

On December 3, 2025, Defendants filed an opposition, supported by the Declaration of Counsel, Jonathan Cahill. In summary, the opposition asserts that Plaintiff's motion does not set forth new or different facts, circumstances or law; that Plaintiff failed to oppose the demurrer and failed to meet and confer to file a second amended complaint. Accordingly, Plaintiff does not meet the requisite elements for reconsideration. Plaintiff's counsel did not file a timely reply brief.

Analyses

Under Cal. Code of Civ. Proc § 1008(a):

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the

order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212, Code Civ. Proc., § 1008. “A motion for reconsideration may only be brought if the party moving for reconsideration can offer ‘new or different facts, circumstances, or law which it could not, with reasonable diligence, have discovered and produced at the time of the prior motion. Cal. Code of Civ. Proc. § 1008, subd. (a); see *Jade K. v. Viguri* (1989) 210 Cal. App. 3d 1459, 1467, 258 Cal. Rptr. 907.) A motion for reconsideration will be denied absent a strong showing of diligence.” (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690; *Forrest v. State Of California Dept. Of Corporations* (2007) 150 Cal.App.4th 183, 202 disapproved of and overruled on unrelated grounds in *Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1172 (footnote 3); *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213; *Baldwin v. Home Sav. of America*. (1997) 59 Cal.App.4th 1192, 1199.)

A Court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law” that (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.) The moving party’s burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.)

Here, the sparsely worded Declaration of Plaintiff’s Counsel claims that there are “new facts” and “new law” which supports reconsideration. First, he claims that he attempted to file a Second Amended Complaint, attached to his declaration, which clarifies additional legal theories for relief sought by Plaintiff. The second amended complaint was never properly filed, as Plaintiff did not seek leave to amend required by Court rules, nor did he attempt to meet and confer with Defendants’ attorney to achieve a stipulation to file a second amended complaint. Moreover, his failure to file a second amended complaint is not a “new fact” which warrants reconsideration. At most, it demonstrates that Counsel committed mistake, inadvertence, or excusable neglect under Cal. Code of Civ. Proc § 473(b), for which relief is not sought. Nonetheless, the Court finds that the failure to file a second amended complaint does not arise to a “new fact” under Cal. Code of Civ. Proc § 1008.

Next, Plaintiff’s Memorandum of Points and Authorities and Counsel’s declaration alludes to a “new law” prohibiting foreclosure of “Zombie loans.” But, Plaintiff fails to identify which new law applies to him, whether it is retroactive, and does not set forth any claim of diligence in seeking relief under that law. Even if Plaintiff refers to AB 130, effective June 30, 2025, which he fails to identify in his moving papers, Cal. Code of Civ. Proc § 1008(f) states, “For the purposes of this section, an alleged new or different law shall not include a later enacted statute without a retroactive application.”

Lastly, a motion for reconsideration will be denied absent a strong showing of diligence.” (*Garcia v. Hejmadi, supra*, at 690. Here, Plaintiff’s counsel fails to explain why he failed to file a timely opposition to the demurrer after meeting and conferring with Defendants’ counsel; why he failed to

contest the tentative ruling sustaining Defendants' demurrer pursuant to Court rules, and why he failed to appear at the hearing on the demurrer. Such lack of diligence cannot be excused, given Counsel's significant legal experience. Moreover, this lack of diligence cannot support a Motion for Reconsideration.

As noted in the Court's order sustaining the demurrer, California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Plaintiff did not even attempt to oppose Defendants' Demurrer to Plaintiff's First Amended Complaint and failed to explain, in a declaration, the reasons for this fatal inaction.

Ruling

Plaintiff's Motion for Reconsideration is **denied**. Defendants' counsel is ordered to prepare and e-file a proposed order that conforms to this ruling. The Court notes that Defendants' counsel failed to prepare a proposed order sustaining the demurrer following the September 3, 2025 hearing. To avoid the issuance of an order to show cause, Defendants' counsel is ordered to comply with this court's ruling for both the September 3, 2025 ruling and this order.

7. 9:00 AM CASE NUMBER: C24-02453
CASE NAME: JOSHUA ROCHA VS. CHRISTOPHER CHILIMIDOS
***HEARING ON MINOR'S COMPROMISE RE: ISABELLA ROCHA**
FILED BY: ROCHA, JOSHUA
TENTATIVE RULING:

Summary

Petitioner Aura Rocha's Petition for Approval of Compromise of Minor Isabella Rocha's ("Minor") Claim filed on November 7, 2025, is **granted**, as set forth below. No appearance is required at the January 7, 2026 hearing.

Background

On November 7, 2025, Petitioner Aura Rocha, parent and guardian *ad litem* for her daughter, Isabella Rocha (DOB 8/14/2019), filed the instant Petition through Petitioner Joshua Rocha's counsel Brian Larsen, Esq., to compromise the claim that Minor had against Defendant Christopher Chilmidos related to an accident that occurred on March 30, 2024 in Walnut Creek, CA. In that accident, Minor sustained injuries including a bump on head, laceration on neck and bruising on groin area. Petitioner represents that Minor has received treatment at John Muir Hospital and UCSF Benioff Children's Hospital, including imaging and chiropractic treatment. She has fully recovered and there are no

permanent injuries.

The Defendant offered settlement in the amount of \$30,000 to Minor, of which \$19,483.11 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$10,516.89 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees and costs incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on November 7, 2025. No appearance is required at the haring of this Petition.

8. 9:00 AM CASE NUMBER: C25-00116

CASE NAME: RALPH DEAN VS. CHRISTOPHER BEITE

HEARING ON SUMMARY MOTION

FILED BY: DEAN, RALPH

TENTATIVE RULING:

Before the Court is Plaintiff Ralph Dean ("Plaintiff" or "Dean")'s motion for summary adjudication. The Motion relates to Plaintiff's claim for Negligence and Defendant Christopher Beite ("Defendant" or "Beite")'s second affirmative defense of Comparative Fault.

Plaintiff moves for summary adjudication on the grounds that "there is no defense with respect to Plaintiff's claim for Negligence and that Defendant's Second Affirmative Defense of Comparative Fault has no merit." (Notice at 1:9-10.)

For the following reasons, the motion is **denied**.

Brief Factual Allegations

On September 1, 2024 at approximately 10:21 AM, Plaintiff was walking in the street immediately in front of the property located at 5370 Fernbank Drive, Concord, California, 94521. (UMF 1.) The property was owned by Defendant. (UMF 2.) As Plaintiff passed the Premises, an unleashed dog raced out from the side of the Premises, rushing towards Plaintiff and growling, a second dog following seconds later. The dogs approached Plaintiff in a non-friendly manner. The two dogs were owned by Defendant. (UMF 3.) The dogs had been in the backyard of the Premises but were able to escape and go onto the street as the gate was not secured. (UMF 5.)

As the dogs approached, Plaintiff attempted to back up and move away from the dogs, however they continued to growl and move towards and around him, leaving him unable to get away from the dogs. As Plaintiff continued to attempt to move away from the dogs, one dog rapidly ran around his body, racing in front of him. (UMF 9.) The dog's sudden appearance and continued aggression startled Plaintiff, who attempted to stop and avoid making contact with the dog. (UMF 10.) As Plaintiff attempted to back up and get away from the dogs, the dogs continued to advance. Plaintiff ultimately lost his balance and fell to the ground. (UMF 11.) Plaintiff suffered personal injuries as a result of the

incident. (UMF 13.)

Legal Standard

A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact ... ” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A plaintiff moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that there is no defense to a cause of action [because] the party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(1).)

However, “[i]f the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The Court notes that California law does not require a moving Plaintiff to negate a Defendant’s affirmative defenses to satisfy its initial burden. (See *Aguilar, supra*, 25 Cal.4th at p. 853 [‘summary judgment law in this state no longer requires a plaintiff moving for summary judgment to disprove any defense asserted by the defendant as well as prove each element of his own cause of action.... All that the plaintiff need do is to “prove[] each element of the cause of action” ’].)

Analysis

Plaintiff, relying primarily on Defendant’s response to requests for admissions, argues that it is undisputed that Defendant was negligent and that his negligence caused Plaintiff to suffer injury. In opposition, Defendant argues that there are triable issues of material facts with respect to both breach and foreseeability.

“To establish a cause of action for negligence, the plaintiff must show that the ‘defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.’ [Citation.] Recovery for negligence depends as a threshold matter on the existence of a legal duty of care. [Citation.] [¶] Duty is not universal; not every defendant owes every plaintiff a duty of care. A duty exists only if “‘the plaintiff’s interests are entitled to legal protection against the defendant’s conduct.’”” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 213.)

For dog bite cases, “When an owner has reason to believe his dog is savage, ill-tempered, mischievous or dangerous to persons and property, he may be kept only at the owner’s risk, who will become liable for damages resulting from such conduct of the dog which exhibits such known traits or character.” (*Drake v. Dean* (1993) 15 Cal.App.4th 915, 922.) The court further stated that “A negligence cause of action arises when there is ineffective control of an animal in a situation where it would reasonably be expected that injury could occur, and injury does proximately result from the negligence. The amount of control required is that which would be exercised by a reasonable person based upon the total

situation at the time, including the past behavior of the animal and the injuries that could have been reasonably foreseen.” (*Id.* at 926.) Lastly, the Court distinguished between common law strict liability and negligence: “If a plaintiff proves scienter, a dog-owner is absolutely liable for injuries caused by the dangerous characteristic of the dog. If, on the other hand, the plaintiff is unable to prove that the owner knew or should have known of the dog's dangerous characteristics, then the owner is liable only if the plaintiff is able to prove that the owner acted negligently in keeping the dog.” (*Id.* at 928.)

As a threshold issue, the Court is not convinced that Plaintiff has met his initial burden to show that Plaintiff was wholly negligent. While Plaintiff admits that his negligence was a substantial factor in causing plaintiff harm (Response to RFA No. 3), he clearly denies that his negligence was the “sole, legal cause” of the incident. (Response to RFA No. 5.) Additionally, characterizing his deposition testimony of “My dog got out and barked and caused this” (Beite Depo. at 11:15) as an admission of total liability on Plaintiff’s claim for negligence is somewhat disingenuous.

Here, Defendants have adduced evidence that they never received any complaints about the dogs in the three years preceding the subject accident (UMF 30); that the dogs had no history of escaping the yard or exhibiting aggressive or dangerous behavior towards any person (UMF 31); and that it was uncommon for the dogs to play in the backyard (UMF 33.) The Court is inclined to agree with Defendant that “[w]hether the latch becoming undone rises to a breach of duty is a factual question for a trier of fact to determine.” (Opp. at 6:26-27.)

The Court finds the opinion in *Drake v. Dean* instructive. In *Drake*, the court discussed the foreseeability of harm that will give rise to a duty to protect third persons from a dog. A keeper of a dog will be liable for negligence where there is proof that the dog posed a reasonably foreseeable risk of harm to others, and the keeper failed to exercise ordinary care to avert that risk. (*Drake, supra*, 15 Cal.App.4th at p. 931, see *id.* at p. 925 [“In determining the keeper’s liability for negligence for injuries inflicted by a domestic animal, the criterion usually adopted is one of reasonable anticipation of the occurrence, i.e., foreseeability”].) The court recognized that “negligence may be predicated on the characteristics of the animal which, although not abnormal to its class, create a foreseeable risk of harm. As to those characteristics, the owner has a duty to anticipate the harm and to exercise ordinary care to prevent the harm. [Citation.] ‘The common law [] provided that the owner of an animal which was not vicious . . . but which was prone to some other potentially harmful behavior, could be held liable under a theory of negligence for any injury proximately caused by such behavior. In such cases the owner was only liable if, having knowledge of the particular propensities which created a foreseeable risk of harm, he failed to exercise reasonable care in control of the animal.’” (*Id.* at p. 929.) Similarly, a person who keeps a dog “is required to know its normal habits and tendencies,” and therefore is “required to realize that even ordinarily gentle animals are likely to be dangerous under particular circumstances and to exercise reasonable care to prevent foreseeable harm.” (*Id.* at p. 925, quoting Rest.2d Torts, § 518, com. h.)

The *Drake* court recognized that “it is not unknown for dogs to jump on people,” and therefore “it may reasonably be anticipated that a dog which has jumped on people before will do it again.” (*Drake, supra*, 15 Cal.App.4th at p. 931.) In *Drake*, because the plaintiff had presented evidence that the defendant knew the dog “‘had a habit of jumping on people,’” the court concluded that “an inference could be drawn that such conduct was reasonably foreseeable.” (*Ibid.*)

Given the undisputed evidence that the dogs had no history of escaping the yard or exhibiting aggressive or dangerous behavior towards any person (UMF 31), the Court cannot conclude as a matter of law that it was foreseeable that they would escape and startle Plaintiff.

Plaintiff's motion for summary adjudication is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

9. 9:00 AM CASE NUMBER: C25-00514

CASE NAME: ARACELI CALDERON VS. MARIE VALENCIA

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: VREJ V. GARABEDIAN

FILED BY: VALENCIA, ENRIQUE

TENTATIVE RULING:

Defendants' former counsel, Vrej Garabeian's Motion to be Relieved as Counsel for Defendants Enrique and Marie Valencia, filed on September 10, 2025, is **moot**. A Substitution of Attorney form was filed on September 22, 2025, wherein Defendants agreed to become self-represented litigants. No appearance is required at the hearing on January 7, 2026.

10. 9:00 AM CASE NUMBER: C25-00842

CASE NAME: CHRIS CARVALHO VS. POWIS PARKER, INC.

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: POWIS PARKER, INC.

TENTATIVE RULING:

Before the Court is a demurrer to Plaintiff's first amended complaint. For the reasons set forth, the demurrer is **sustained**, and the case is **dismissed without prejudice**.

Background

Plaintiff alleges he is the assignee for collection of claims of the law firm Gagen, McCoy, McMahon, Koss, Markowitz & Fanucci, a professional corporation ("Assignor") against defendant Powis Parker, Inc. (First Am. Compl. ("FAC") ¶¶ 1, 2.) Plaintiff alleges Powis owes approximately \$62,000 for legal services rendered by the Assignor. Plaintiff asserts four common counts for recovery of the fees in the FAC.

Legal Standards for Ruling on A Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Evans, supra*, 38 Cal.4th at 6.)

Kane Declaration, Request for Judicial Notice, and Plaintiff's Evidentiary Objections Thereto

Plaintiff objects to the Kane Declaration and Defendant's asking the Court to take judicial notice of the exhibits attached to the Kane Declaration in support of the demurrer. The notice of the demurrer

states it is supported by the Kane Declaration "and the Request for Judicial Notice," but Defendant did not file a request for judicial notice in support of the demurrer. The notice of demurrer and demurrers and the memorandum of points and authorities in support of the demurrer do not specify the documents subject to judicial notice and the legal basis for the Court to take judicial notice. (See Code Civ. Proc. § 430.70 ["When the ground of demurrer is based on a matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, such matter shall be specified in the demurrer, or in the supporting points and authorities for the purpose of invoking such notice, except as the court may otherwise permit." (Emphasis added.)].)

Though Defendant failed to comply with the foregoing authorities, the Kane Declaration clearly sets forth the documents of which Powis requests judicial notice and the legal basis for the request. As to the pleadings filed in prior actions, the docket of the federal action in Florida in which the Assignor represented Powis, and the pleading and order filed in the Florida federal action (Kane Decl. Exhs. A-F), the Court **denies** the request for judicial notice of those documents as they are irrelevant to the determination of the demurrer. (*StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of pleadings extends to the fact of the filings but not the truth or interpretation of the content of the filings to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [judicial notice denied where "the requests present no issue for which judicial notice of these items is necessary, helpful, or relevant"].)

The Court also **denies** the request for judicial notice of Exhibit H as not a proper subject of judicial notice in ruling on a demurrer, with one exception. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) The Court **grants** the request for judicial notice of the "Notice of Client's Right to Arbitrate" ("Arbitration Notice") attached as part of the Kane Declaration Exhibit H because Plaintiff has admitted that the Arbitration Notice is not subject to any genuine dispute under Evidence Code section 452(h). Plaintiff himself has quoted the text of the notice at length in the opposition to the demurrer and has admitted that the Arbitration Notice was the notice Defendant received. (Opp. to Dem. p. 3, l. 22- p. 5, l. 19.) The Court also grants the request for judicial notice of Exhibit G, the State Bar form notice of the client's right to arbitrate fee disputes as not subject to reasonable dispute and implicitly admitted by Plaintiff's position on the Arbitration Notice. (Evid. Code § 452(h).)

As to Plaintiff's Evidentiary Objections to the Kane Declaration, the Court does not consider evidence in ruling on a demurrer except matters subject to judicial notice. Based on the Court's rulings on Defendant's request for judicial notice of Exhibits A through F above, the Court **sustains** Objection Nos. 1 and 2. As to Objection No. 3, the Court **overrules** the objection to the extent it addresses the Arbitration Notice attached as part of Exhibit H based on Plaintiff's admission as to the genuineness of that notice and that the Arbitration Notice was the notice Defendant received. (Opp. to Dem. p. 3, l. 22- p. 5, l. 19.)

Analysis

Powis makes a general demurrer to the FAC in its entirety on two grounds; first, that Plaintiff failed to provide the proper notice to Powis of its right to have the dispute over the fees submitted to nonbinding arbitration pursuant to the Mandatory Fee Arbitration Act ("MFAA"), and second, that Plaintiff is a non-attorney who cannot be an assignee for collection of the debt for attorneys' fees

owed to the Assignor firm by its former client. Defendant also requests that the Court dismiss the FAC based on the Assignor's failure to comply with the MFAA as stated. (Dem. p. 2, ll. 10-11.)

A. Mandatory Fee Arbitration

The MFAA, Business & Professions Code section 6200 *et seq.*, provides that arbitration "shall be voluntary for a client and shall be mandatory for an attorney if commenced by a client." (Bus. & Prof. Code § 6200(c).) Section 6201 of the Business & Professions Code states in pertinent part:

The rules adopted by the board of trustees shall provide that an attorney shall forward a written notice to the client prior to or at the time of service of summons or claim in an action against the client, or prior to or at the commencement of any other proceeding against the client under a contract between attorney and client which provides for an alternative to arbitration under this article, for recovery of fees, costs, or both. The written notice shall be in the form that the board of trustees prescribes, and shall include a statement of the client's right to arbitration under this article. Failure to give this notice shall be a ground for the dismissal of the action or other proceeding. . . .

The rules adopted by the board of trustees shall provide that the client's failure to request arbitration within 30 days after receipt of notice from the attorney shall be deemed a waiver of the client's right to arbitration under the provisions of this article.

(Bus. & Prof. Code § 6201(a) [emphasis added].)

Rule 3.501 of the Rules of the State Bar provides:

(A) California law entitles a client to arbitration of a dispute regarding an attorney's fees for legal services. If initiated by a client, fee arbitration is mandatory for an attorney. Fee arbitration is voluntary for a client unless the parties have agreed in writing to submit their fee disputes to mandatory fee arbitration.

(B) An attorney must provide the client with the mandatory State Bar Notice of Client's Right to Fee Arbitration form before or at the time of

(1) service of summons in a lawsuit against the client for fees; or

(2) commencing any other proceeding against the client for fees under a contract that provides for an alternative to mandatory fee arbitration.

(C) Failure to provide the notice is grounds for dismissal of the

lawsuit or other proceeding.

Rule 3.502 of the Rules of the State Bar sets forth the manner in which a client may waive the right to compel the attorney to nonbinding arbitration of the fee dispute:

(A) A client's right to request or maintain fee arbitration is waived if

(1) a complete State Bar Request for Arbitration has not been received by the State Bar within thirty days of the client's receipt of the State Bar Notice of Client's Right to Fee Arbitration;

(2) the client commences a legal action or files a pleading seeking either of the following:

(a) judicial resolution of a fee dispute subject to arbitration;

or

(b) affirmative relief against an attorney for alleged malpractice or professional misconduct; or

(3) the client receives a State Bar Notice of Client's Right to Fee Arbitration but does either of the following before submitting a State Bar Request for Arbitration:

(a) answers or otherwise responds to a complaint filed in court by the attorney; or

(b) files a response in another proceeding regarding fees initiated by the attorney.

(Rules of the State Bar, Rule 3.502(A)(1), (2) and (3) [emphasis added].)

The State Bar form itself reinforces that use of the State Bar form is required. (RJN Ex. G ["**Mandatory** State Bar Approved Form Rev. March 2013" (emphasis added)].) Plaintiff's opposition does not address the provisions of Business and Professions Code and Rules of the State Bar, in particular the portions of these authorities that mandate use of the State Bar form notice.

1. Waiver of Mandatory Fee Arbitration Requires Use of the State Bar Form

Plaintiff argues that the notice he used is less confusing than the mandatory State Bar form. Plaintiff, however, cites no authority that makes use of the State Bar mandatory notice form optional where a particular county bar association does not conduct fee arbitrations. The language of Business & Professions Code section 6201(a), State Bar Rules 3.501 and 3.502, and the form itself is clear that the form is mandatory, and service of the State Bar form on the client is the event that triggers the client's waiver of the right to compel the attorney to nonbinding fee arbitration if the client fails to demand arbitration within 30 days of receipt of the State Bar form notice. Powis has demanded arbitration in its demurrer, and in any event, Plaintiff concedes Powis did not receive a State Bar form notice which is the event that would trigger a waiver by responding to a complaint in court under Rule 3.502(A)(3), so the event that would trigger the waiver (the client's receipt of the State Bar Notice of Client's Right to Fee Arbitration) has not occurred. As a result, based on Plaintiff's admissions in opposition to the demurrer that the Assignor did not serve the State Bar form but the

Assignor's own form of notice, Defendant Powis has not waived its right to compel the Assignor to nonbinding fee arbitration.

2. Dismissal or Stay of Action

Business and Professions Code section 6201(a) by its terms requires an attorney to serve the mandated State Bar form either prior to or at the time the summons and complaint are served, which Plaintiff concedes did not occur here. Defendant has requested dismissal of the action or alternatively, that the action be stayed pending nonbinding arbitration of the fee dispute under the MFAA. Business and Professions Code section 6201 and Rule 3.501 of the State Bar Rules make the attorney's failure to provide the State Bar mandatory notice of the client's right to arbitrate a ground for the Court to dismiss the FAC.

Case law has construed the MFAA provisions as giving the Court discretion whether to dismiss the action. (*See Richard, Watson & Gershon v. King* (1995) 39 Cal.App.4th 1176, 1179 [dismissal under § 6201 is discretionary, not mandatory, and was not warranted in that case where sophisticated client knew it had the right to arbitrate despite the lack of notice]; *Wager v. Mirzayance* (1998) 67 Cal.App.4th 1187, 1191 [trial court had discretion not to dismiss but properly exercised discretion to dismiss complaint in the absence of required notice to client of right to arbitrate]; *Law Offices of Dixon R. Howell v. Valley* (2005) 129 Cal.App.4th 1076, 1087-1088, 1090-1091 [reversing trial court order of dismissal, holding trial court abused its discretion by concluding dismissal for failure to provide the notice required by Business and Professions Code section § 6201(a) was mandatory and required as a matter of law rather than subject to the trial court's discretion].)

While it is not clear to the Court that the notice requirement of Business and Professions Code section 6201(a) is necessarily an essential element of any cause of action of the FAC, it is a prerequisite to pursuing the claim in Court that, if not fulfilled, in the Court's discretion may warrant dismissal of the action. Under the circumstances, and pursuant to the applicable statute, rules, and case law, the Court finds dismissal of the action, without prejudice, is warranted as permitted under Business and Professions Code section 6201(a) and State Bar Rule 3.501(C) in the exercise of the Court's discretion.

11. 9:00 AM CASE NUMBER: C25-00842

CASE NAME: CHRIS CARVALHO VS. POWIS PARKER, INC.

***HEARING ON MOTION IN RE: STRIKE PORTIONS OF THE 1ST AMENDED COMPLAINT**

FILED BY: POWIS PARKER, INC.

TENTATIVE RULING:

Before the Court is a motion to strike portions of Plaintiff's first amended complaint and to dismiss action, or alternatively, refer the matter to State Bar non-binding fee arbitration. Based on the Court's concurrent ruling on Defendant's demurrer, the motion is **denied, without prejudice** to renewing the motion with respect to any complaint Plaintiff may re-file.

12. 9:00 AM CASE NUMBER: C25-01679
CASE NAME: CARLOS ALFARO AREVALO VS. HYUNDAI MOTOR AMERICA
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: HYUNDAI MOTOR AMERICA
TENTATIVE RULING:

Defendant, Hyundai Motor America Corporation (“defendant” or “Hyundai”), moves the Court under both the California Arbitration Act (“CAA”) and the Federal Arbitration Act (“FAA”) to compel plaintiffs to arbitrate the claims set forth in their complaint, and to stay this action pending the outcome of arbitration. The motion is **granted** and the proceedings herein are stayed pending arbitration. The Court sets a case management conference at 8:30 a.m. on July 7, 2026 to address the status of arbitration.

Background

Plaintiffs, Carlos E. Alfaro Arevalo and Natalia S. Rosales Martinez, allege that, on July 28, 2022, they purchased a 2022 Hyundai Ioniq 5. (Complaint, ¶8.) Plaintiffs assert that defendant issued an express warranty, in which it undertook to preserve or maintain the utility or performance of their vehicle, or to provide compensation if defendant could not do so. (*Ibid.*) The vehicle manifested defects covered by the express warranty, including electrical defects, interior component defects, exterior and body component defects, recalls, and “other serious nonconformities to warranty.” (*Id.* at ¶9.) Plaintiffs delivered the vehicle for repair, but Hyundai failed to conform the vehicle to warranty or provide restitution. (*Id.*, ¶¶23-35.)

Plaintiffs filed the present complaint against Hyundai on June 13, 2025, alleging three causes of action under the Song-Beverly Act. Defendant responded to the complaint by filing this motion on September 3rd.

Defendant’s motion invokes the arbitration provisions found in a purported “Owner’s Handbook & Warranty Information” and in a “Connected Services Agreement Terms and Conditions.” In support of its motion, defendant provides (1) a declaration from counsel, Ali Ameripour, who attaches the purported handbook, as well as plaintiff’s complaint (Exhibits 3 and 4, respectively), and (2) a declaration from Vijay Rao, Hyundai’s Director of Connected Ops & Owner Apps/Web, for Hyundai Motor America, Inc., who attaches the “Connected Services Agreement Terms and Conditions Effective as of 5/26/22,” as well as documents he asserts relate to plaintiff’s agreement to those terms.

Plaintiffs oppose the motion, arguing defendant fails to show an agreement to arbitrate, that the Ameripour declaration is inadmissible, that the CSA does not cover their claims, and that the Magnuson-Moss Warranty Act precludes arbitration. Plaintiffs further argue the arbitration provision within the Owner’s Manual is unconscionable. In support of the opposition, plaintiffs provide a declaration from counsel that (1) attaches rules from two arbitration providers (AAA and JAMS), (2) asserts that arbitrators are prejudiced in favor of manufacturers, and have previously declined to allow depositions in Lemon Law cases, and (3) states the defects found in plaintiffs’ vehicle are related to the transmission and powertrain.

Defendant’s reply brief violates page limits set forth in California Rules of Court, Rule 3.1113 (d). Counsel shall be mindful of this in future court briefing. They reply argues that Hyundai has met its burden to show the existence of an agreement to arbitrate, that plaintiff has not refuted its

equitable estoppel grounds, and the agreements are not unconscionable or barred by statute.

Evidentiary Matters

Based on lack of personal knowledge, foundation, and hearsay, plaintiffs object to the purported Owner's Handbook and the statement identifying the exhibit. The objections are **sustained**.

Both sides request judicial notice. Defendant requests notice of the complaint in this action. Plaintiffs request notice of federal regulations and legislative history concerning the Magnuson-Moss Warranty Act. Neither side objects to the Court taking judicial notice. The requests are **granted**.

Defendant provides a declaration by counsel in support of the reply. The declaration attaches multiple non-binding orders from other trial courts. "The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers. ... '[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ...' and if permitted, the other party should be given the opportunity to respond." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538.) The Court strikes and declines to consider the declaration.

Standard

A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) The party seeking arbitration bears the burden of proving the existence of an arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC, hereinafter "Pinnacle,"* (2012) 55 Cal.4th 223, 236.) In California, contract formation requires free and mutual consent communicated to each other. (Civ. Code, § 1565.) Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties. (*Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781, 788.)

"[A] court, before granting a petition to compel arbitration, must determine the factual issue of 'the existence or validity of the arbitration agreement. In this way, a court's role, though limited, is critical. There is indeed a strong policy in favor of enforcing agreements to arbitrate, but there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate and which no statute has made arbitrable." (*Toal v. Tardif* (2009) 178 Cal.App.4th 1208, 1219–1220.)

Once the party seeking to compel arbitration has alleged the agreement exists, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. (*Ibid.*) If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.)

Analysis

Defendant's motion contends there are two different arbitration agreements that compel arbitration here: that found in the agreement contained in the Owner's Handbook (Ameripour Decl. ¶3, Ex. 3) and that found in the CSA terms & conditions, to which customers purportedly must agree when enrolling in Bluelink services (Rao Decl. ¶¶4–6). Plaintiffs' opposition contends, as a threshold

matter, that any agreement to submit to binding arbitration is barred by the Magnuson-Moss Warranty Act.

Whether the Magnuson-Moss Warranty Act Precludes Arbitration

Citing 16 C.F.R. section 703.5, subdivision (j), plaintiffs argue that the Magnuson-Moss Warranty Act precludes binding mandatory arbitration of any warranty claim, even those under state law. (Memorandum of Points and Authorities in Support of Opposition, 3:18-20.) In response to the argument, defendant notes that plaintiffs do not bring a claim under the Magnuson-Moss Warranty Act.

More importantly, defendant argues both the Fifth and Eleventh Circuits have considered plaintiffs' contention that the Magnuson-Moss Warranty Act precludes binding arbitration agreements, and rejected it. (See *Walton v. Rose Mobile Homes LLC* (5th Cir. 2002) 298 F.3d 470, 478-479 ["We hold that the MMWA does not preclude binding arbitration of claims pursuant to a valid binding arbitration agreement, which the courts must enforce pursuant to the FAA."]; *Davis v. Southern Energy Homes, Inc.* (11th Cir. 2002) 305 F.3d 1268, 1274-1280 ["We hold that the Magnuson-Moss Warranty Act permits binding arbitration and that a written warranty claim arising under the Magnuson-Moss Warranty Act may be subject to a valid pre-dispute binding arbitration agreement."])

While these cases are not binding on this Court, they are persuasive, especially in light of the time that has passed since the issuance of the decisions, and the lack of any citation to California authorities saying otherwise. Accordingly, the court finds that a binding arbitration agreement is not prohibited in this case by the Magnuson-Moss Warranty Act.

Owners Handbook

With respect to the Owner's Handbook, counsel's declaration infers (but does not actually state) that plaintiff purchased a vehicle and received a manual that included an arbitration agreement. Exhibit 3 to the declaration is a document simply described as "Plaintiffs' Owner's Handbook & Warranty Information" for Plaintiff's [sic] vehicle." (Ameripour Decl., ¶13, Ex. 3.)

The attorney's declaration includes no information about the source of the document, or any personal foundation for how counsel knows that is a document that applies to plaintiffs in this case. The document does not contain any indication of acceptance by plaintiffs, and there is no evidence the document was ever actually given to plaintiffs at any time. (See *Norcia v. Samsung Telecommunications America, LLC* (9th Cir. 2017) 845 F.3d 1279, 1288-1290 [Ninth Circuit found arbitration provision in a warranty brochure to be insufficient to form an agreement to arbitrate with the consumer: "warranty generally does not impose any independent obligation on the buyer outside of the context of enforcing the seller's promises."])

Plaintiffs properly objected to the introduction of the handbook and the declaration based on lack of foundation and hearsay. Those objections have been sustained. Accordingly, defendant provides no admissible evidence of plaintiffs' agreement to the terms of the purported handbook.

The Court acknowledges appellate courts have taken what might appear to be diverging approaches regarding the degree of proof required for a moving party to meet its initial burden on a motion to compel arbitration. (Compare, e.g., *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215 with *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836), there is nothing set forth in the moving or reply papers to establish that plaintiffs actually agreed to the terms of the inadmissible document attached to counsel's declaration, or to establish the document was even delivered to the plaintiffs here.

Defendant's position is that the existence of the lawsuit itself (and cause of action based on an express warranty) is sufficient to establish agreement to certain terms under an equitable estoppel theory. However, the terms of any *pleaded* express warranty do not necessarily concede all terms of an unauthenticated, inadmissible handbook that also contains an arbitration provision.

The Court finds Hyundai has not met its burden to establish an arbitration agreement based on the Owner's Manual. This issue (and the arguments related to the unconscionability of the purported handbook) is nevertheless not crucial to the outcome here, in light of the CSA, discussed below.

Connected Services Agreement ("CSA")

As to the CSA, plaintiffs argue defendant provides no evidence that they agreed to it. However, Vijay Rao declares that the plaintiffs enrolled the vehicle in Bluelink services on July 28, 2022. Further, he states that in order to enroll, customers must agree to the then-effective Connected Services Agreement. This *is* evidence. Plaintiffs do not object or offer contradictory evidence. Plaintiffs do not contend that the CSA's arbitration provisions are unconscionable. To the extent they argue unenforceability due to the Magnuson-Moss Act, this has been rejected, as discussed above.

Accordingly, the motion must be granted.